

TWO RULES THAT SHAPE WHAT YOUR CHILD GETS

Neither one is in the law. Family Support for Children with Disabilities · The Alberta Disability System Breakdown · September 2026

There are two rules in Alberta's FSCD program that shape almost everything a family receives. One is a clock. The other is a price. Neither appears in the Act or the regulation.

THE FIRST RULE IS A CLOCK

If your child does not have a diagnosis yet, FSCD can open a file for you, but only for the basic family supports. Counselling hours, help with travel to appointments, parking, meals, clothing, sibling care, and up to 240 hours of respite a year.

Everything aimed at your child directly is off the table until a diagnosis is confirmed. That includes aides, child-focused respite, homemaker help, prescription drug help, prescribed formula and special diet, medical supplies, and specialised services.

And if two years pass without a confirmed diagnosis, your child is no longer eligible for the program at all.

Alberta families wait a long time for assessments. The clock does not stop for the queue.

WHAT THE LAW SAYS

We read the Family Support for Children with Disabilities Act and its regulation from beginning to end, and then searched both for every form of the rule.

- Neither contains a two-year limit, or any time limit on eligibility.
- Neither creates a category of child who is awaiting a diagnosis.
- The regulation does not use the word diagnosis at all, anywhere.
- Nothing in either document bars child-focused services while a diagnosis is pending.

What the Act does say, it says twice, in the same words. Section 3(1), which covers family support services, and section 4(1)(a), which covers child-focused services, both require:

“a medical diagnosis, in a format satisfactory to the director, of a child's condition or impairment indicates that the child has a disability”

One sentence, read three different ways.

The policy manual treats a provisional diagnosis as enough to meet those words for family support services, and not enough to meet the identical words for child-focused services. Then it treats the same provisional diagnosis as enough on day 730 and not enough on day 731.

Those three positions cannot all be read off the same sentence. Every one of them is made at manual level, and none of them is in the Act.

AND THE ACT ASKS ABOUT THE CONDITION, NOT THE CAUSE

The Act asks for a diagnosis of your child's condition or impairment that indicates a disability. It defines disability as a chronic developmental, physical, sensory, mental or neurological condition or impairment. It does not ask for a named syndrome and it does not ask why.

The manual's own glossary says a provisional diagnosis is one awaiting further investigation of the cause or nature of a condition. And manual section 4.1 says that a diagnosis that is chronic or lifelong does not require further clarity to determine eligibility.

So if your child's condition is documented as chronic and limiting, and what is still unknown is the cause, say that in writing. It may already meet the words the Act uses.

YOU CAN APPEAL, AND THE COMMITTEE IS BOUND BY THE LAW

The manual says a parent may appeal any decision made under the authority of the Act or the regulation, including decisions about eligibility, and that the appeal committee is bound by the Act and the regulations.

So if your child is found ineligible because two years ran out, you can appeal to a body whose governing texts contain no two-year rule.

45 days. That is the deadline to appeal, from the date of the written notification of the decision. Ask for every decision in writing, and write the date you received it on the envelope.

THE SECOND RULE IS A PRICE

The regulation says how many hours of respite or aide support your child can have. 240 hours of respite a year. 12 hours a month of homemaker help. 50 hours a week of in-home care. Four hours a day of personal care aide. 144 hours a year of community aide. Ten hours a week of behavioural or developmental aide.

The same regulation publishes what FSCD pays for 12 cents a kilometre of driving, 10 dollars for parking, 85 dollars for a hotel night, 400 dollars for clothing, and a 250 dollar dental threshold.

It never says what FSCD will pay the person who looks after your child.

The manual says the rate is based on community standards, and its glossary defines community standards as the typical cost of purchasing child care services in your community. It does not say what that cost is. There is no published rate, no range, and no regional table anywhere in the Act, the regulation or the manual.

So a family can be told how many hours they have and still not know what those hours are worth, which is another way of saying they do not know whether anyone will take the job.

WHAT YOU CAN DO

- **If your child is approaching two years without a diagnosis**, ask your caseworker in writing what will happen at the two-year mark, and what authority in the Act or the regulation that decision rests on. Keep the answer.
- **If the condition is documented but the cause is not**, say so in writing. The Act asks for a diagnosis of the condition, not its cause.
- **If you are negotiating a respite or aide rate**, ask in writing what community standard figure is being used for your area, and where it comes from.
- **Ask for every decision in writing**, and write down the date it reached you. Forty-five days is not long.

How this was checked. The FSCD Act and AR 140/2004 were read in full and then searched term by term, and the policy manual was searched the same way. Every search result was read in context and recorded, whichever way it came out. Where something could not be established, this guide says so rather than filling the gap.

This is general information about published rules. It is not legal advice. Where this guide and the legislation differ, the legislation governs.